

STATE OF NEW YORK

9548--A

IN SENATE

March 24, 2026

Introduced by Sens. C. RYAN, GRIFFO, SKOUFIS, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law and the education law, in relation to the identification of individuals who provide face-to-face care to or direct observation of a patient; and to amend the criminal procedure law, in relation to requiring complainants to only submit the address of the health care facility at which they were providing services at the time of the offense in cases involving an alleged offense against a health care practitioner

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph (v) of paragraph (g) of subdivision 1 of
2 section 2803 of the public health law, as amended by chapter 618 of the
3 laws of 2022, is amended to read as follows:

4 (v) a right to be informed of the name, position, and functions of any
5 persons, including medical students and physicians exempt from New York
6 state licensure pursuant to section sixty-five hundred twenty-six of the
7 education law, who provide face-to-face care to or direct observation of
8 the patient, except that a general hospital shall allow employees,
9 contractors and other individuals who provide face-to-face care to or
10 direct observation of the patient to list only their first name and
11 first initial of their last name on their identification badge;

12 § 2. Subdivision 37 of section 6530 of the education law, as added by
13 chapter 606 of the laws of 1991, is amended to read as follows:

14 37. Failing to wear an identifying badge, which shall be conspicuously
15 displayed and legible, indicating the practitioner's name and profes-
16 sional title authorized pursuant to this chapter, while practicing as an
17 employee or operator of a hospital, clinic, group practice or multi-pro-
18 fessional facility, or at a commercial establishment offering health
19 services to the public; provided, however, that hospitals shall allow
20 employees, contractors and other individuals who provide face-to-face
21 care to or direct observation of patients in hospital facilities to list

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 just their first name and first initial of their last name on their
2 identification badges;

3 § 3. Subdivision 1 of section 2803 of the public health law is amended
4 by adding a new paragraph (g-1) to read as follows:

5 (g-1) Notwithstanding any inconsistent provision of this article or
6 any rule or regulation promulgated thereunder, every hospital shall
7 allow employees, contractors and other individuals who provide face-to-
8 face care to or direct observation of patients in hospital facilities to
9 list just their first name and first initial of their last name on their
10 identification badges.

11 § 4. Subdivision 1 of section 100.15 of the criminal procedure law is
12 amended to read as follows:

13 1. An information, a misdemeanor complaint and a felony complaint must
14 each specify the name of the court with which it is filed and the title
15 of the action, and must be subscribed and verified by a person known as
16 the "complainant." The complainant may be any person having knowledge,
17 whether personal or upon information and belief, of the commission of
18 the offense or offenses charged. Each instrument must contain an accusa-
19 tory part and a factual part. The complainant's verification of the
20 instrument is deemed to apply only to the factual part thereof and not
21 to the accusatory part. Notwithstanding any provision of law to the
22 contrary, when a health care practitioner is the complainant regarding
23 an offense committed against them in the course of performing their
24 professional duties in a health care facility, as defined in section two
25 thousand eight hundred one of the public health law, the practitioner
26 shall be allowed to provide the address of the health care facility at
27 which they were providing services at the time of the offense and shall
28 not be required to include their personal address.

29 § 5. This act shall take effect on the one hundred twentieth day after
30 it shall have become a law.